

**Before the
Federal Maritime Commission**

Docket No. 24-16

SAMSUNG ELECTRONICS AMERICA, INC.

v.

COSCO SHIPPING LINES CO., LTD.,

v.

**SAMSUNG ELECTRONICS COMPANY, LTD.,
SAMSUNG SDSAP GLOBAL SCL ASIA PACIFIC PTE LTD.,
AND SAMSUNG ELECTRONICS LOGITECH COMPANY, LIMITED**

JOINT MOTION FOR EXTENSION OF TIME

Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”) and Respondent and Third-Party Complainant COSCO Shipping Lines Co., Ltd., (“Respondent” or “COSCO”) (and collectively the “Parties”), by their undersigned counsel, respectfully submit this Motion for Extension of Time and proposed revised procedural schedule. Pursuant to 46 C.F.R. § 502.102, motions for enlargement of time “may be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.” The Parties respectfully request an extension of time for completion of substantial document production and propose the revised procedural schedule set forth below. As explained in the Joint Status Report filed on August 21, 2025, the size and scope, as well as unforeseen challenges necessitating this request have arisen

despite the Parties' best efforts to complete production in accordance with the prior scheduling order issued by the Presiding Officer on July 8, 2025.

The Parties respectfully request that the Presiding Officer grant an enlargement of time to modify the schedule by approximately eight weeks to complete document production and take depositions of fact witnesses.

Here, the Parties respectfully submit that good cause exists for granting the requested enlargement of time due to the size and scope of the Complaint and related requests for document production, as well as additional complexities in obtaining, reviewing, compiling and producing an extremely large number of documents. As reflected in the Parties' filing of a joint motion and joint proposed schedule, the extension will not result in undue prejudice or delay to either Party, but rather will permit a more complete record for the Presiding Officer, and the courts.

The Parties have made rolling productions of documents. On August 28 and 29, 2025, SEA timely made its final production pursuant to the extended deadline set by the Commission, producing additional documents resulting in a total production (to date) by SEA of over 2,000,000 pages of documents. On August 29 and September 2, 2025, COSCO produced additional documents, resulting in a total production (to date) by COSCO of more than 199,000 pages of documents. Respondent requires the requested extension because obtaining, reviewing, and preparing for production the vast scope of documents requested by Complainant is a massive undertaking requiring coordination of many departments within COSCO across at least three countries.

There is no central repository where all of COSCO's documents may be accessed. Instead, different departments within COSCO control and have access to different collections of electronically stored information. COSCO has collected documents from U.S.-based custodians.

The size of that data set, counting documents collected but not yet reviewed, is approximately 1.3 terabytes—a massive volume of data. Review for privilege and responsiveness must be completed, which will take many hours to complete. Some of these documents may also need to be translated to enable effective review.

As noted in the Joint Status Report, each Party also plans to take a sizable number of fact depositions (as has been the case in other proceedings brought by SEA). The Parties estimate a total for both of about 20 depositions, some of which are likely to involve deponents located outside the United States, and thus likely to require translators and accommodations regarding time zones. Given the sizable document productions, each Party will need time after completion of document production to review documents and prepare for depositions. A typical month has only about 20 working days, which may be further reduced by holidays such as the mid-Autumn festival and Chinese national holiday (October 1-9), the Jewish high holidays (September 23-October 3) and Thanksgiving. A fair approximation of the ability to depose might be a deposition every third day – so about 60 days.

Complainant agrees to the extension of time because COSCO's production of responsive documents is not complete. SEA states that it is entitled to this discovery, and would be greatly prejudiced by proceeding without it. SEA states that the requested discovery from COSCO, in particular of the facts of each demurrage and detention charge and COSCO's evidence of its reasons for charging SEA at the time, is critical for the full development of the evidentiary record in light of the requirement that there be a factual charge by charge analysis of SEA's claims.¹ SEA

¹ SEA states that if COSCO does not fully produce responsive discovery in this proceeding, either because it cannot do so timely (in the event an extension is not granted) or in the event that it ultimately fails to do so, SEA will need to pursue all available remedies, including seeking adverse inferences against COSCO (e.g., that the absence of evidence showing that SEA was responsible at the time for delays resulting in each charge should be construed as

also states that because SEA's production is complete, but COSCO's is not, COSCO would be able to prepare for subsequent discovery with the benefit of SEA's complete production, but SEA is comparatively unable to do so. To address SEA's concern that it would be prejudiced, and potential prejudice to COSCO, the Parties propose that neither will begin review of the documents produced by the other Party on or after August 28, 2025 prior to both Parties having completed document production.

Granting the requested extension will advance judicial efficiency and facilitate discovery, allowing the Parties to complete their production in accordance with the newly established protective order and with the requisite authority.

Despite the Commission's laudable goal of discovery within 150 days after the filing of the Answer, the Commission and the ALJs have been very sensitive to the need for full factual development in cases where the amount at stake is substantial. The Complaint is wide-ranging in terms of the number of charges being contested and the complexity of the matter. The Parties' instant request is not unique, but rather consistent with multiple other proceedings of similar ilk.

The Parties respectfully request extension of the deadlines as follows:

Event	Current Deadline	Requested Deadline
Joint Status Report	[NONE]	September 15, 2025
Production of documents completed; depositions of fact witnesses may be noticed.	August 28, 2025	October 17, 2025
Fact depositions completed; Expert depositions begin.	September 25, 2025	December 12, 2025
Discovery completed.	October 29, 2025	January 9, 2026
Complainant's Opening Brief, Proposed Findings of Fact, and Appendix.	[NONE]	February 9, 2026

evidence that SEA was not in fact responsible for the delays resulting in each charge) and all other available remedies.

Respondent's Opposition Brief, Proposed Findings of Fact, Response to Complainant's Proposed Findings of Fact, and Appendix.	[NONE]	March 12, 2026
Complainant's Reply Brief and Response to Respondent's Proposed Findings of Fact.	[NONE]	March 26, 2026

For the foregoing reasons, the Parties respectfully request that the Motion for Extension of Time be granted and the foregoing procedural schedule be adopted.

Dated: September 5, 2025

Respectfully submitted,

/s/ Rebecca Fenneman

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CERTIFICATE OF SERVICE

I hereby certify that on this 5th day of September, 2025, a true and correct copy of the foregoing Joint Motion for Extension of Time was served by electronic mail on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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